SUBJECT TO BRAIN STORMS

(Continued from Page One)

after going into the Moore house that night," the prisoner was asked.

"If I was out of my mind, would I remember it?" was the response.

"You were the man who wielded the ax, were you not? Mr. and Mrs. Simons heard you talking about the murders on the train June 10, 1912, at 7:16 o'clock between Hastings and Macedonia. How did you find this out when the tragedy was not discovered in Villisca until 8:30 o'clock the same morning?"

"Will you promise to place me in a hospital for the insane if I do tell you, Mr. Havner?"

"I can promise you nothing, Kelly. I want you to get this off of your mind and tell the whole truth as far as you know it."

Repeatedly the prisoner was reported to attempt to get the attorney general to make him a promise to have him placed in a place where he would be treated as an insane man. Kelly also complained, according to Miss Longman's report, that Judge Sutton, one of his attorneys, would go back on him if he told all he knew about the murders.

"I want to consult my attorneys," Kelly begged, and renewed his pleading to go to a hospital for the insane.

"You were upstairs, were you not," asked the attorney general. "Did you go in the front door?"

"I thought I was an artist when I asked the little girl to undress in Sioux City," Kelly said. "What will you do with me if I tell you all?"

"I cannot promise anything," said Mr. Havner. "The law will not allow it."

"You know I have always been bothered by children," continued Kelly. "I suppose I killed the children first. Former Sheriff Jackson and County Attorney Ratcliff promised they would put me in an insane asylum.

"I know a preacher could not commit a crime like this unless he was insane. You, Mr. Havner, who are a member of the Methodist conference, would not harm an insane man, would you? I could not help it. Children always did bother me.

"Judge Sutton will quit me if I tell the truth. Mitchell and Judge Sutton told me I was not guilty; that I am insane.

"I killed the children upstairs first and the children downstairs last. I knew God wanted me to do it this way. 'Slay Utterly' came to my mind, and I picked up the ax, went into the house and killed them. God told me to do it, and that is all there is to it.

"If God wants me to burn a barn, I have to do it. If God wants me to slay utterly, I have to do it.

"Children always have bothered me. A voice called and said there would be a light, and there was a light, just like the Bible said there was a light.

"When I went up stairs, a voice said 'Suffer them to come to me,' and I said 'Lord, now they are coming.' Then I went down stairs. I killed the children downstairs, too, when the voice commanded me to.

"I speak seven languages, and understood the Lord when he told me to slay utterly. Every time I preached on that text I felt like doing it. I thought I was Christ.

"If you will take me to a hospital, I will tell you an awful story on Wilkerson.

"I never killed anybody but the Moore family. If the Lord should say again 'Make the way clear for Christ', I should have to kill again. I am a part of Christ. I followed the shadow into the house and saw the light. The Lord said 'Suffer little children', and I said 'Yes, Lord they are coming.' The children came first, and the Lord wants them to come first. I wanted to go back to my room, but it seemed like a voice said 'More yet,' and I killed the other two children."

"Will you go down to Red Oak and tell what you have told here?" inquired Mr. Havner.

"They will lynch me down there," responded Kelly. "I will be killed if I go to Red Oak. Will you put me in the hospital if I do go? When I get these spells I cannot tell what I will do. I asked Judge Sutton if I could have done it while I was insane. Sutton said I was insane, but not guilty."

Miss Longman said she did not take all that was said in the room up until the other stenographer arrived. "Just tell us the truth, Kelly," was spoken four or five times by Mr. Risden, the witness said. With the exception of this remark, the stenographer declared she had reported everything that had been spoken while she was in the room.

Milton Osler of Macedonia, was called and declared, in response to Attorney Mitchell's question, that he knew Sam Barnett of Macedonia, who testified several days ago for the state to the effect that he had heard Kelly talking about the Villisca murders in Macedonia before the bodies were discovered in Villisca.

W. P. Dinwiddie also of Macedonia, declared on the witness stand that he knew the Rev. Kelly and saw him take from the post office in that city a letter or postal card about 4 o'clock on the afternoon of June 10, 1912. The witness said that Kelly said the communication related to the Villisca ax murders.

Lou Enarson, real estate dealer of Villisca, said he saw Kelly for the first time June 8, 1912, when he met the minister at the depot in Villisca and conveyed him to the home of Henry Enarson, north of Villisca. The witness said he and Kelly left Villisca between 7 and 8 o'clock after taking supper at his house. The witness said he took the prisoner to the home of the Rev. Ewing in Villisca on the evening of June 9, 1912.

Henry Enarson, farmer living about five and a half miles from Villisca, said Kelly stayed at his house Saturday night, June 8. He said he had two boys and five girls. The oldest girl then was 10 years old. The youngest child was a young baby. The witness said he took Kelly to the Pilot Grove Presbyterian church ten miles distant from his home and heard the minister's discourse there in the morning. He said there were about thirty persons present. The services were concluded about noon, the witness said. Kelly and Enarson took dinner at the home of Mr. and Mrs. Robins between 12 and 1 o'clock. Kelly, he said, preached at Arlington in the afternoon to about twenty persons. "I took Mr. Kelly to my home then, about a mile distant from Arlington. Mr. brother was waiting for us at my residence."

Attorney Mitchell complained that he was unable to get his witnesses to respond to calls. Judge Boies told the attorney he would have to be more prompt in the future and have his witnesses in the court room when they were needed. "The court will not stand these delays," said Judge Boies. "You will have to get some one to round these witnesses up for you."

Samuel Barnett of Macedonia was called. He said he knew Milton Osler, but did not recall having had a conversation with Osler shortly after the arrest of Kelly. Osler said he talked to Barnett about the Villisca tragedy.

"Sam, is it a fact that the preacher told you about the murders that Monday morning?" Osler declared he inquired of Barnett, and Barnett is said to have replied "No, it was after that I heard it, and I went home and told my wife," Osler said Barnett remarked to him in a conversation following the murder.

Ed Landers, real estate dealer of Shanandoah, declared he was in Villisca June 9, 1912. He said he was staying at the home of his mother. Landers declared he was assisting his sister, Mrs. Posten, on the night of June 9, who conducted a restaurant in Villisca. Witness said the restaurant was located on the south side of the square near the southeast corner, facing the square and the first door west of The Jones Store. Landers said he left the restaurant about 8 o'clock with Mr. and Mrs. Posten. He said he went to the corner east of the restaurant and turned north on the way to his mother's home. The witness said he went as far north as the north side of the schoolhouse, and then went east on the north side of the street, which runs between the Methodist and Presbyterian churches. The witness said he saw someone just ahead of him at the corner a block west of the Joe Moore house. The witness said he did not know where the person come from. "The closest I got to the man was eight or ten feet," he said "and this was just in front of the Moore residence," said the witness. "When the man came to the sidewalk leading to the Moore house, he turned and went in.

"There were no lights in the house, as far as I could see. At first I did not know who it was who had gone into the house. Later I was convinced that it was Albert Jones. I have known Albert Jones since he was a small boy. I went on over to my mother's place on the road leading north. We turned north just a short distance east of the Joe Moore house. I saw this man go into the Moore house about 8:15 o'clock.

Cross examined by Attorney Faville for the state, the witness said he was 43 years old. He said he was a married man and was a married man in June, 1912. The witness said he did not recall who was in the restaurant when he, his hister and brother-in-law left. He did not remember meeting any one on the way from his sister's restaurant to the home of his mother. He said he left his mother's home about 5 o'clock in the afternoon and went to the restaurant, arriving there shortly after 5 o'clock. He could not remember the names of any of the persons who were in the restaurant when he went in. He was sure Mrs. Posten was there. Landers said he assisted with the work around the place, and spent most of the time behind the cigar counter. He said he took his supper about 7 o'clock.

Landers said the night was rather dark. He remembered that it was cloudy. The man he had seen ahead of him wore a brown coat, dark trousers and hat, and he could see him a block away, but could not determine who it was at that distance.

"I thought at first the man ahead was Ross Moore. No, I did not speak to him," said the witness. "I was passing the Moore residence when I looked back and saw him going into the front door of the Moore residence. I thought it was funny when I saw it was not the man I had taken it to be. I recognized the man from a side view I got of him."

The witness could not say whether or not it was an east or west view he had gotten. Landers said he stayed at his mother's home that night and went down town the next morning about 7 o'clock. The witness said he remained in Villisca two or more weeks after the murders.

"Did you ever say that you thought that Fen Moore committed the murders?" Landers was asked by Mr. Faville.

"I did not."

"Did you not tell Hank Horton that you did not see any one around the Joe Moore home that night?"

"I did not."

"Did you not have a talk with a man named McCoy in the park at Villisca when you said you had your mind on the guilty man and that man lived in Taylor county?"

The objection of the defense was sustained by the court.

The witness was asked if he did not state that he had no occasion to notice the Joe Moore house on the night of June 9, 1912, before the corner's inquest held between June 11 and 18.

"Did you not say that there was nothing more to notice that night about the Moore residence than you had noticed on other occasions?"

"I might have made that answer," the witness replied.

"Did you not say before the coroner's jury that you did not see any one around the Moore residence that night?"

"I did not make that statement," witness declared.

Attorney Mitchell declared he would offer as a witness the stenographer who took Landers' testimony before the corner's jury later. He said some changes had been made in Landers' statement and the stenographer would say so on the witness stand.

C. J. Morris, attorney of Sioux Falls, S. D., was called. The witness said he was a former member of the legislature of his state, and speaker of the house in 1911, and at one time connected with the federal attorney's office of Sioux Falls. He said he met Kelly in the Sioux Falls jail, and had talked to him frequently.

"Sometimes I do not know what I am doing," Kelly said to Mr. Morris on one occasion, the witness said. "I don't even know my name. It may be Jones."

The witness said on another occasion Kelly seemed to imagine he was President Wilson and wanted to appoint one of the prisoners in jail as postmaster.

Mr. Morris was of the opinion that Kelly was of unsound mind.

Wednesday's Witnesses

Horace Houghton, probation officer of Sioux City, was the first witness called this morning by the defense. "Kelly came to my office and said he had a ministerial appointment in Nebraska and asked me to arrange for his transportation to the new charge," said Mr. Houghton. On this occasion witness said the prisoner's eyes were unusually bright and the man was very nervous; that he talked incoherently. When he saw Kelly again in his office April 22, 1915, the defendant seemed to be sick, nervous and excited. "I asked him to go with me to the Y. M. C. A. for dinner," Mr. Houghton declared, "and latter went with him to see a physician, who, I understand advised Kelly to get work on a ranch somewhere. I arranged for his ticket and sent him to a ranch.

"Kelly again was in my office August 1, 1915," said the witness. "He seemed to be much better than he was when I last saw him. Upon his next visit he seemed to be excited. During our conversation I remember his saying 'It's all a lie; I never made any improper proposal to that girl. I am being persecuted by Dick Richards.' I told him to leave Sioux City. He replied that he wanted to stay and fight for his rights. I secured an attorney for Kelly and it was arranged to have him return to Sioux Falls on the old charge."

"Was Kelly, in your judgment, basing your opinion on the conversation and your contact with the man, at this time of unsound mind," asked Attorney W. E. Mitchell.

Attorney F. F. Faville's objection to the question was overruled by the court and the witness answered in the affirmative.

On cross examination by Mr. Faville, the witness declared that he did not notice anything unusual about the conduct of conversation of the man upon first meeting with him. This he said, was in March, 1915. The Witness said he saw him three days later in the city jail at Sioux City. "They say I asked a girl to pose in nude," Kelly is alleged to have said on this occasion. "I did not do it. I wanted her to pose in drapery." Kelly told me he was arrested in Winner, S. D., for writing letters," said Mr. Houghton, "and he said he had been committed to an institution in Washington City."

Mr. Houghton said he heard frequently from Kelly while he was in the Sioux Falls jail. "I saw him next in my office April 22, 1915," said the witness. "He told me he would be all right as soon as his health was recovered and he also talked of his future plans. He said he could get work as an expert stenographer and he knew he could succeed as a preacher. I had him do some work for me as a stenographer. He was rapid and accurate.

"Mr. Kelly gave me a book he had written on 'The Divine idea of Preaching.' He also gave me a sermon he had prepared on 'Dynamic Personality.' He told me that his wife at this time was with friends in South Dakota making her own living by teaching music."

A short while afterwards Kelly secured work as a stenographer in a business office in Sioux City; established an office in the Iowa building where he did public stenographic work. The witness said he objected to Kelly's undertaking this. "Later when I called at his office," Mr. Houghton said, "Kelly was dictating from a manuscript. He told me he was writing a book. The next time I saw him he had been placed under arrest. 'I am being persecuted,' he told me, 'The public stenographer in the building has worked up a charge against me to get me out. I am innocent. I keep my office door open. I did not ask the girl to pose in the nude. I shall sue the Tribune for damages.'"

Kelly declared again that he wanted to go to work on a farm; that Dick Richards had it in for him. Kelly then secured a job on a farm and stayed there sometime, the witness said.

Mr. Houghton repeated on re-cross examination by Mr. Faville that, judging from his conversations with the defendant, in his opinion, he was of unsound mind.

Paul Roadifer, county attorney of Harrison county, who testified yesterday, was recalled to the stand by Attorney Mitchell and asked how long he was in taking the statement Kelly dictated in the Logan jail August 31, 1917, confessing to having killed the Moore family and the two Stillinger girls. He said he was about an hour.

J. J. Ferguson, court reporter from Council Bluffs, then was called to the stand. He said that Attorney Hess called him up at 12:30 o'clock, August 31, 1917, and asked him to go to Logan. He said he and Mr. Hess started in an automobile between 1 and 1:30 o'clock and arrived at the sheriff's office in Logan at 2:30 o'clock. Attorney General Havner, Sheriff Myers, Deputy Sheriff Atkins, Kelly and a young woman stenographer were there when he and Mr. Hess arrived. Two men, whom he did not know, were seated just outside of the door of the sheriff's office, the witness said, when he entered. The witness said Charles Bachelor of Council Bluffs, also was there. Mr. Ferguson said he took the questions put to Kelly there that morning and also took down in short hand the answers made by the prisoner to the questions. The witness was furnished a copy of the transcript of the notes and read it to the jury.

"I told them if I did it I was insane," Kelly is reported to have answered one of the attorney general's questions.

"I want to be put in an insane asylum," the prisoner pleaded while he was being questioned by Mr. Havner and Mr. Hess.

Repeatedly Mr. Havner and Mr. Hess urged Kelly to tell only the truth and nothing but what he knew about the Villisca murders. The prisoner was asked if he had sent for Mr. Havner, saying that he had something to say to him, and replied that he had, and that he wanted to talk to the attorney general; that there was something on his mind of which he wanted to be relieved.

The report shows that Kelly was afraid Attorney Mitchell and Attorney Sutton would desert him and leave him without legal advice. "All of them will go back on me," he complained.

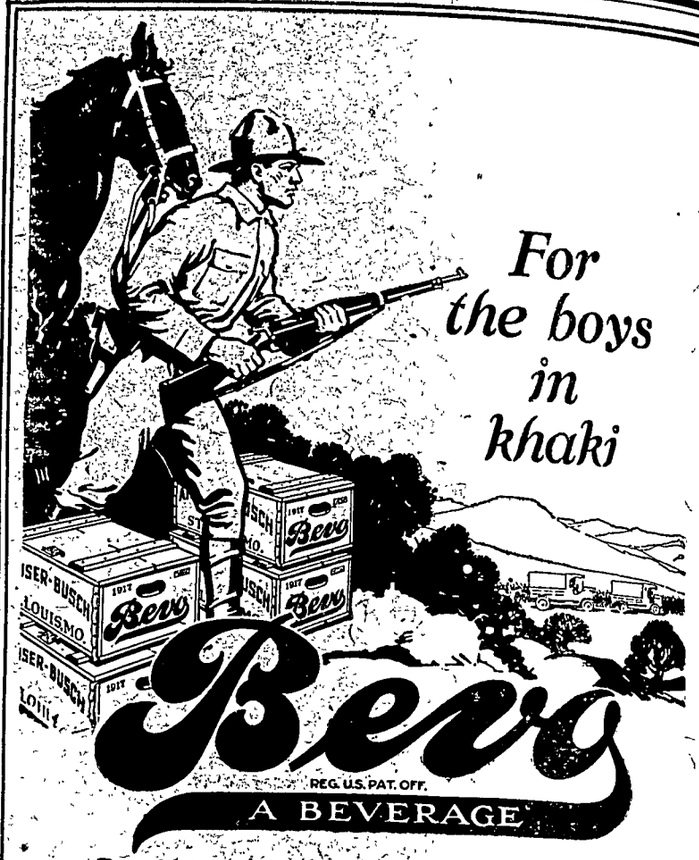
"I want to be kept on an insanity charge," the defendant is reported to have reiterated time and again. "I have been insane since my childhood," he said.

"Don't the law say if you do that you are insane?" the prisoner asked the attorney general. "The law says that, don't it? No preacher would do this unless he was insane."

Kelly told his audience that he had suffered two sun strokes in his life.

While lying in his bed at the home of the Rev. W. J. Ewing in Villisca on the night of June 9, 1912, Kelly said he heard a voice say "Rise, Peter, slay and eat." He heard this command three times, he said. "The voice said keep on going, and it sounded like the voice of Samuel in the temple. And I kept on going. I saw shadows. I saw an ax on an ash heap and picked it up. I said to the shadow 'Whatever you tell me to do I will do.' This voice sounded like that of the Holy Ghost. I think I followed the shadow around to the front door. It was dark. God

(Continued on Page Three)



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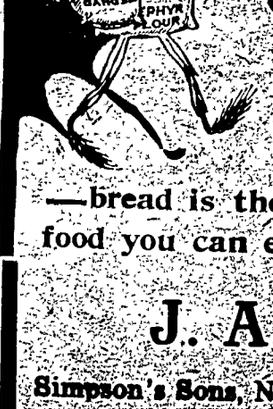
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